

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eva Vaillancourt	Team: Team # 4	CCRB Case #: 201303537	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/23/2013 6:30 PM	Location of Incident: § 87(2)(b) inside the 120th Precinct stationhouse	18 Mo. SOL 10/23/2014	Precinct: 120		
Date/Time CV Reported Tue, 04/23/2013 12:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/29/2013 2:44 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Arthur Truscelli	00691	931348	NARCBSI
2. DT3 David Luppino	04762	906674	NARCBSI
3. DT3 John Brooks	06877	915057	NARCBSI
4. DT3 Nicholas Velez	00450	933451	NARCBSI
5. LT Andrey Smirnov	00000	931503	120 PCT
6. DT3 Andrew Fago	02171	928265	NARCBSI
7. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Gerard Delprete	01973	923749	NARCBSI
2. DT3 Michael Friedman	06423	920305	NARCBSI
3. SGT Salman Asghar	00540	934426	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 John Brooks	Abuse: Det. John Brooks stopped § 87(2)(b) and § 87(2)(b) in front of § 87(2)(b)	A . Unsubstantiated
B . DT3 David Luppino	Abuse: Det. David Luppino stopped § 87(2)(b), and § 87(2)(b) in front of § 87(2)(b)	B . Unsubstantiated
C . DT3 John Brooks	Abuse: Det. John Brooks searched § 87(2)(b) in front of § 87(2)(b)	C . Unsubstantiated
D . DT3 John Brooks	Abuse: Det. John Brooks frisked § 87(2)(b) in front of § 87(2)(b)	D . Unsubstantiated
E . An officer	Abuse: An officer strip-searched § 87(2)(b) in front of § 87(2)(b)	E . Unfounded
F . DT3 David Luppino	Abuse: Det. David Luppino strip-searched § 87(2)(b) in front of § 87(2)(b)	F . Unfounded

Officer(s)	Allegation	Investigator Recommendation
G . DT3 John Brooks	Abuse: Det. John Brooks searched the car in which § 87(2)(b) were occupants in front of § 87(2)(b)	G . Unsubstantiated
H . DT3 David Luppino	Abuse: Det. David Luppino searched the car in which § 87(2)(b) were occupants in front of § 87(2)(b)	H . Unsubstantiated
I . DT3 Arthur Truscelli	Abuse: Det. Arthur Truscelli searched the car in which § 87(2)(b) were occupants in front of § 87(2)(b)	I . Unsubstantiated
J . LT Andrey Smirnov	Abuse: Sgt. Andrey Smirnov searched the car in which § 87(2)(b) were occupants in front of § 87(2)(b)	J . Unsubstantiated
K . DT3 Nicholas Velez	Abuse: Det. Nicholas Velez searched the car in which § 87(2)(b) were occupants in front of § 87(2)(b)	K . Unsubstantiated
L . DT3 Andrew Fago	Abuse: Det. Andrew Fago searched the car in which § 87(2)(b) were occupants in front of § 87(2)(b)	L . Unsubstantiated
M . DT3 John Brooks	Abuse: Det. John Brooks refused to provide his name to § 87(2)(b) in front of § 87(2)(b) and to § 87(2)(b) at the 120th Precinct stationhouse.	M . Unsubstantiated
N . DT3 David Luppino	Abuse: Det. David Luppino refused to provide his name to § 87(2)(b) at the 120th Precinct stationhouse.	N . Unsubstantiated
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On April 23, 2013, § 87(2)(b) filed this complaint with IAB, via phone. The CCRB received the referral on April 29, 2013. On April 23, 2013, § 87(2)(b) his girlfriend § 87(2)(b) and her brother § 87(2)(b) were stopped by officers outside of § 87(2)(b) on Staten Island. The following allegations resulted from their actions:

Allegation A – Abuse of Authority: Det. John Brooks stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b) in front of § 87(2)(b)

Allegation B – Abuse of Authority: Det. David Luppino stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b) in front of § 87(2)(b)

Allegation C – Abuse of Authority: Det. John Brooks searched § 87(2)(b) in front of § 87(2)(b)

Allegation D – Abuse of Authority: Det. John Brooks frisked § 87(2)(b) in front of § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that they be closed as **unsubstantiated**.

Allegation E – Abuse of Authority: An officer strip-searched § 87(2)(b) in front of § 87(2)(b)

Allegation F – Abuse of Authority: Det. David Luppino strip-searched § 87(2)(b) in front of § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that Allegations E and F be closed as **unfounded**.

Allegation G – Abuse of Authority: Det. John Brooks searched the car in which § 87(2)(b)

and § 87(2)(b) were occupants in front of § 87(2)(b)

Allegation H – Abuse of Authority: Det. David Luppino searched the car in which § 87(2)(b)

, § 87(2)(b) and § 87(2)(b) were occupants in front of § 87(2)(b)

Allegation I – Abuse of Authority: Det. Arthur Truscelli searched the car in which § 87(2)(b)

, § 87(2)(b), and § 87(2)(b) were occupants in front of § 87(2)(b)

Allegation J – Abuse of Authority: Sgt. Andrey Smirnov searched the car in which § 87(2)(b)

, § 87(2)(b), and § 87(2)(b) were occupants in front of § 87(2)(b)

Allegation K – Abuse of Authority: Det. Nicholas Velez searched the car in which § 87(2)(b)

, § 87(2)(b), and § 87(2)(b) were occupants in front of § 87(2)(b)

Allegation L – Abuse of Authority: Det. Andrew Fago searched the car in which § 87(2)(b)

, § 87(2)(b), and § 87(2)(b) were occupants in front of § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that Allegations G through L be closed as **unsubstantiated**.

Allegation M – Det. John Brooks refused to provide his name to § 87(2)(b) in front of § 87(2)(b)

and to § 87(2)(b) at the 120th Precinct stationhouse

Allegations N – Det. David Luppino refused to provide his name to § 87(2)(b) at the 120th Precinct stationhouse.

§ 87(2)(g)

Allegation M and N, and therefore recommends that they be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a black male, § 87(2)(b), with black hair and brown eyes, who was § 87(2)(b) and unemployed at the time of this incident.

CCRB Statement

§ 87(2)(b) provided a phone-statement to the CCRB on April 30, 2013, and was interviewed at the CCRB on May 7, 2013 (encl. C1-10). § 87(2)(g)

At 6:37 p.m. on April 23, 2013, § 87(2)(b) his fiancée § 87(2)(b) and her half-brother § 87(2)(b) were all sitting in a car parked outside of § 87(2)(b) in Staten Island. The house belongs to § 87(2)(b), § 87(2)(b)'s father. She, § 87(2)(b) and § 87(2)(b) had driven in from New Jersey to check on § 87(2)(b) who smokes crack-cocaine and often requires their care. Having confirmed that § 87(2)(b) was alright, the three were waiting in their rented vehicle for him to come outside and say goodbye before driving into Manhattan. § 87(2)(b) was laying down in the driver's seat, dozing. § 87(2)(b) was also reclining, asleep in the passenger seat, and § 87(2)(b) was seated in the backseat behind § 87(2)(b). The vehicle, a white Impala, had been in the three civilians' possession for less than an hour; a friend of § 87(2)(b)s, known to § 87(2)(b) as § 87(2)(b) and identified by the investigation as § 87(2)(b) had rented the car for them and dropped it off at around 5:30 p.m. before returning to the store where he worked. § 87(2)(b) had used the vehicle to go cash his tax refund for approximately \$5,000, some \$500 of which was sitting in the vehicle's cup-holder at the time of the incident. Neither § 87(2)(b) nor § 87(2)(b) nor § 87(2)(b) was smoking either marijuana or tobacco inside the vehicle. None of the three had consumed any drugs that day.

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) had been sitting in the car for three to five minutes when § 87(2)(b) stepped out of the vehicle. It was then that § 87(2)(b) noticed two plainclothes police officers flanking the car. Of those two officers, one was described as a white male who was shorter than his partner, with salt-and-pepper hair and glasses. This officer, identified by the investigation as Det. David Luppino, had stopped § 87(2)(b) as he stepped out of the vehicle, and was now speaking to him by the rear passenger-side door. The other officer, a white male about 5'10" or 5'11" tall, without glasses, identified by the investigation as Det. John Brooks, was standing by § 87(2)(b)s door. § 87(2)(b) believed that the officers had come from an unmarked dark blue or black van that he observed nearby and believed was a prisoner van, but did not see them pull up or approach. After asking § 87(2)(b) for her license and registration, which she provided, Det. Brooks immediately instructed her to exit the vehicle. § 87(2)(b) complied. Det. Brooks then walked around the car and asked § 87(2)(b) to step out. § 87(2)(b) left the vehicle and stood by the front-passenger's side, where he could hear Det. Luppino asking § 87(2)(b) if he was carrying any contraband. § 87(2)(b) replied that he did have less than joint's worth of marijuana in his pocket. Det. Luppino removed the marijuana, which was balled up in a tissue, from § 87(2)(b)s pants pocket. § 87(2)(b) never learned, at this point or subsequently, of other drugs recovered in the course of the incident.

It was at that point that the officers caught sight of § 87(2)(b)s \$500 in the front seat. Even after § 87(2)(b) had explained where the money had come from, the officers appeared convinced that he and the others were in possession of contraband, or so § 87(2)(b) inferred. Det. Luppino turned § 87(2)(b) around and hoisted his pants up by the waistband. § 87(2)(b) believed that Det. Luppino was trying to pull § 87(2)(b)s pants up between his buttocks to cause any contraband secreted there to fall out. Det.

Luppino then slid his bare hand into § 87(2)(b)'s underwear and withdrew it. One of the officers then called for backup on his cellphone, possibly saying, "Hurry up. We've got a big one."

Det. Luppino handcuffed § 87(2)(b) and stood him by a fence a few feet away. Det. Luppino then approached § 87(2)(b) and asked if he could search him. § 87(2)(b) said yes, stating that he had nothing to hide. Det. Luppino patted the outside of § 87(2)(b)'s clothes and removed the contents of his pockets. At around this time, or possibly a little before, § 87(2)(b)'s father, § 87(2)(b) and his girlfriend, § 87(2)(b) came outside of § 87(2)(b) to observe what was happening.

As Det. Luppino led § 87(2)(b) to the rear of the vehicle, where § 87(2)(b) was also standing, three more unmarked cars arrived in quick succession, bearing a total of seven additional officers. All were male, all were in plainclothes, and all were white, save for one Hispanic officer, PO1. Soon after the arrival of the first additional car, Det. Luppino turned § 87(2)(b) around and began to whisper in his ear, asking § 87(2)(b) if he had anything on him. § 87(2)(b) said no. Det. Luppino lifted § 87(2)(b)'s pants in the same manner he had § 87(2)(b)'s, then placed his hand inside § 87(2)(b)'s underwear, such that his hand was against § 87(2)(b)'s skin. He placed two fingers between the crack of § 87(2)(b)'s buttocks and swiped upwards.

As the second and third unmarked cars were arriving, the officers assembled searched the white Impala. Det. Luppino searched the front passenger's seat, glove-compartment, and the trunk of the car. Det. Brooks searched the driver's side. Approximately six other officers, none of whom § 87(2)(b) could describe, then searched the Impala again. PO1 may have been the only one who did not search the vehicle.

During the search of the Impala, § 87(2)(b) was instructed by an unspecified officer to call § 87(2)(b) whose name was on the rental agreement for the Impala, down to the scene to retrieve it. When § 87(2)(b) arrived on the scene, several officers § 87(2)(b) could neither identify nor describe stopped, searched, and arrested him. § 87(2)(b) did not know what § 87(2)(b) was being arrested for. § 87(2)(b) and § 87(2)(b) were then placed inside the prisoner van in which Det. Brooks and Det. Luppino had arrived, and all parties left the scene shortly thereafter. § 87(2)(b) was not arrested or issued a summons.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a black male who is § 87(2)(b). He has black hair and brown eyes.
§ 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on May 7, 2013 (encl. C11-17). His statement is summarized below.

On April 23, 2013, at approximately 6:37 p.m., § 87(2)(b) his sister § 87(2)(b) and her boyfriend § 87(2)(b) were all sitting in a car parked outside of § 87(2)(b)'s father's house at § 87(2)(b) in Staten Island. § 87(2)(g)

There were no drugs in the vehicle, aside from a small amount of marijuana in § 87(2)(b)'s pocket, and no one used drugs while inside the vehicle, though § 87(2)(b) had smoked marijuana earlier that day.

After the civilians had been sitting and talking in the car for three to five minutes, an unmarked blue van drove by, heading south off of Richmond Terrace. After they had passed, § 87(2)(b) moved to step out of the vehicle, at which point the blue van made a U-turn and pulled up behind the civilians. Two male officers in plainclothes exited the van. The officer who approached § 87(2)(b) was described as a skinny white male, about 6'5" tall and under 200 pounds, with short black hair and clean-shaven face, and was identified by the investigation as Det. John Brooks. The other officer, who approached § 87(2)(b)'s side of the vehicle, was a white male, heavyset, 5'8" or 5'9" tall, with glasses and black-and-

gray hair. He was identified by the investigation as Det. David Luppino. Det. Brooks instructed § 87(2)(b) to stay still and keep his hands out of his pockets, and then to turn around and put his hands on the car. § 87(2)(b) complied. When Det. Brooks asked § 87(2)(b) if he had any contraband on his person, § 87(2)(b) replied that he had a small amount of marijuana in the right front pocket of his pants, which Det. Brooks removed. Det. Brooks then asked § 87(2)(b) if he had anything else, and, when § 87(2)(b) said no, patted down the outside of his clothing. The officers called for backup, and then waited with the civilians for approximately ten minutes. § 87(2)(b) was standing with the officers at the rear of the Impala, where § 87(2)(b) and § 87(2)(b) eventually joined him. He had heard nothing of their interactions with Det. Luppino.

Two more unmarked cars then rounded the corner. The first car was a black Dodge minivan, bearing three plainclothes officers, and the second was a gray Nissan Maxima, containing two or three more officers, also in plainclothes. Of the officers who arrived, § 87(2)(b) could describe only one: PO1, whom the investigation could not definitively identify, arrived in the black minivan. He was a short white male in his early thirties, 5'8" tall, about 150 or 160 pounds, with short salt-and-pepper hair, a beard and goatee. When the responding officers arrived, Det. Brooks and Det. Luppino told them, "I think we've got something." Four officers then began to search the Impala; Det. Brooks, Det. Luppino, and PO1 were not among them. The officers searched the whole vehicle, including the trunk, the glove compartment, and under all the seats. They recovered an unspecified sum of money. Remarking upon it, officers repeatedly said, "They've got too much money not to have something," and though § 87(2)(b) tried to explain that he had just cashed his tax refund, the search of the vehicle continued for some fifteen to twenty minutes. Throughout the incident, officers repeatedly suggested to § 87(2)(b) that he shouldn't be at § 87(2)(b) that he should know what kind of house it is. § 87(2)(b) stated he doesn't know anything about the house, though he does know that § 87(2)(b), § 87(2)(b)'s father and a resident there, smokes crack.

At some point during the vehicle search, Det. Brooks handcuffed § 87(2)(b). § 87(2)(b)'s father, § 87(2)(b) appeared on the scene with his girlfriend at some point, and witnessed much of the encounter. While the other officers were searching the vehicle, PO1 approached Det. Brooks and asked him if he had searched § 87(2)(b). Det. Brooks said yes, he had. PO1 indicated that he was going to do it again and patted the outside of § 87(2)(b)'s clothes, down his upper body and up his legs, running his hands over the inner thigh area all the way up to the crotch. PO1 made a cupping motion and jostled § 87(2)(b)'s genitals. He then hitched up § 87(2)(b)'s pants by the beltline and went inside his underwear, placing his hand between § 87(2)(b)'s boxer shorts and skin. He then quickly withdrew his hand. PO1 then approached § 87(2)(b), turned him around, and began to murmur in his ear. PO1 hitched up § 87(2)(b)'s pants, then patted the outside of § 87(2)(b)'s clothing. He ran his hands up § 87(2)(b)'s legs and reached between them to feel § 87(2)(b)'s genitals. He then slipped his hand beneath § 87(2)(b)'s underwear and quickly withdrew it.

Sometime during the search of the vehicle, a man who § 87(2)(b) knows only as § 87(2)(b) and who the investigation identified as § 87(2)(b) approached the group and was summarily arrested by Det. Luppino. § 87(2)(b) and § 87(2)(b) were both placed in the back of the blue van and taken to the 120th Precinct stationhouse. After spending about half an hour in the 120th Precinct stationhouse holding cell, § 87(2)(b) asked Det. Brooks and Det. Luppino for their names; the two officers were standing at a desk, less than seven or eight feet from the holding cell, along with PO1 and several other officers from the incident. § 87(2)(b) addressed his request to both officers individually; both looked at him, then turned away. § 87(2)(b) is certain that the officers heard his request, and § 87(2)(b) was with him when he made it. § 87(2)(b) was charged § 87(2)(a) 160.50

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a black female who is § 87(2)(b), with black hair and brown eyes. She was § 87(2)(b) at the time of this incident and did not disclose her employment status.

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on May 7, 2013 (encl. C18-24). Her statement is summarized below.

On April 23, 2013, at approximately 6:37 p.m., § 87(2)(b) her boyfriend § 87(2)(b) and her brother § 87(2)(b) were all sitting in a vehicle parked outside her father's house at § 87(2)(b) in Staten Island. The vehicle was a rented white Impala, registered in the name of a friend § 87(2)(b) knows as § 87(2)(b) identified by the investigation as § 87(2)(b). § 87(2)(b) had delivered the car to § 87(2)(b) at some point earlier in the day, while § 87(2)(b), § 87(2)(b), and § 87(2)(b) were visiting § 87(2)(b)'s father, § 87(2)(b). § 87(2)(b) had left the Impala parked outside the house and returned to the store where he works, at Richmond Terrace and § 87(2)(b). § 87(2)(b), § 87(2)(b) and § 87(2)(b) then left § 87(2)(b) and entered the vehicle, waiting for § 87(2)(b) to join them. § 87(2)(b) was sitting in the driver's seat. No one smoked either marijuana or tobacco while inside the vehicle.

The three civilians had been sitting and talking for no more than five minutes when an unmarked blue van bearing two plainclothes officers drove by their vehicle and continued up the block. As § 87(2)(b) was exiting the Impala, saying that he had to go to the bathroom, the blue van made a U-turn and pulled up behind the civilians' vehicle. The officer in the passenger's seat exited the van and immediately approached § 87(2)(b) who was by this time outside the Impala, standing by the door. That officer was short and stocky, 5'6" or 5'7" tall, around 200 pounds, and may have been Puerto Rican, with black-and-gray hair and a goatee. He was identified by the investigation as Det. David Luppino. § 87(2)(b) was not able to hear anything of his conversation with § 87(2)(b). The driver of the blue van approached § 87(2)(b) as she sat at the wheel of the Impala. He was a white male, possibly Italian, a little shorter than § 87(2)(b) possibly 6'6" tall, stocky, about 250 pounds, with black hair, and was identified by the investigation as Det. John Brooks. Det. Brooks briefly displayed his badge to § 87(2)(b) and then asked her for her identification. § 87(2)(b) provided her license and the rental agreement for the vehicle. Noting that the car was not rented in her name, Det. Brooks asked § 87(2)(b) where § 87(2)(b) was. She replied that he was working at a store around the corner. Det. Brooks asked § 87(2)(b) to exit the vehicle, and she complied. As she did, she noticed that Det. Luppino was searching § 87(2)(b) removing items from his pockets and placing them on the trunk of the Impala. § 87(2)(b) stated to the officer that he had a small amount of marijuana in his pocket, which Det. Luppino confiscated. The marijuana was wrapped up in a dollar bill.

After instructing § 87(2)(b) to stand by the back of the Impala, which she did, Det. Brooks went to the front passenger's side where § 87(2)(b) was sitting and asked him to exit the vehicle. § 87(2)(b) complied, and Det. Brooks then searched him. He patted the outside of § 87(2)(b)'s clothing, then emptied his pockets on the hood of the Impala. § 87(2)(b) was instructed to stand with § 87(2)(b) and § 87(2)(b) at the rear of the vehicle.

The officers then noticed some \$500 sitting in the vehicle's cup-holder, money which § 87(2)(b) had lent to § 87(2)(b) after cashing his income-tax refund for something like \$5,000 earlier that day. One of the officers called for back-up on his cell phone, saying, "Where are they? They need to hurry up and get here, we've got a big bust." Though § 87(2)(b) and the other civilians protested their innocence,

the officer continued to circle the Impala saying, “There has to be something in here, because there’s a lot of money.” Det. Brooks and Det. Luppino then searched the car, digging through the entire vehicle, except the trunk, and opening all its compartments.

Just then, three more unmarked vehicles rounded the corner. The first car to arrive was a black Dodge caravan, followed seconds later by two more unmarked vehicles that § 87(2)(b) could not describe. There were, by this point, four unmarked vehicles and nine officers on the scene. All of the officers were male, all were in plainclothes, and there were no black officers among them. The officers who arrived in the first two responding vehicles searched the car a second time. One of the responding officers, identified by the investigation as Det. Nicholas Velez, was a skinny Puerto Rican officer with a goatee and short, curly black hair. He was described as being about 5’10” tall, and 180 or 190 pounds, in his late thirties. He arrived in the Dodge minivan. Det. Velez searched the driver’s side of the Impala, but did not search the trunk. § 87(2)(b) described another officer on the scene as heavysset and bald, about 5’7” tall and around 300 pounds; this officer was identified by the investigation as Det. Andrew Fago. Det. Fago and another male officer, who § 87(2)(b) could not describe, searched the trunk. Det. Fago did not search anywhere else in the car. The search of the Impala continued throughout the incident, and was still going on when § 87(2)(b) and § 87(2)(b) were searched for the second time.

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) were positioned at the rear of the vehicle when § 87(2)(b) still handcuffed, was searched for a second time. § 87(2)(b) was unable to state definitively which officer conducted this search, but it may have been Det. Brooks. The officer made as if to hoist § 87(2)(b)s pants up and, as he did, slipped his hand under the waistband and down the back of the pants. § 87(2)(b) was standing directly adjacent to § 87(2)(b) when a different officer, possibly Det. Luppino, approached § 87(2)(b) and asked him if he’d been searched. When § 87(2)(b) said yes, this officer stated that he was going to do it again. He hitched up § 87(2)(b)s pants and slid his hand underneath § 87(2)(b)s underwear. § 87(2)(b) was able to observe the officer’s elbow bending awkwardly as he inserted his hand into § 87(2)(b)s underwear, and then withdrew it. After § 87(2)(b) had observed § 87(2)(b)s second search, she asked Det. Brooks for his name. Det. Brooks ignored her. He was standing three or four feet away, but § 87(2)(b) could not remember if he gave any indication of having heard her request. Meanwhile, § 87(2)(b) was also asking various officers for their names; § 87(2)(b) stated that the officers in the area have frequent contact with her father, who smokes crack and has a string of drug offenses on his record, and that these officers addressed him by name when they dismissed his requests, saying, “Go ahead, Mike. Go ahead.”

§ 87(2)(b) then appeared, having been called down to the scene by § 87(2)(b) after the officers instructed him to have the owner of the car come pick it up. As he approached from Richmond Terrace, § 87(2)(b) was met by officers § 87(2)(b) could not describe. He did not appear to be smoking anything or carrying anything as he approached, but was nevertheless searched and arrested. § 87(2)(b) was then led to the blue van by three officers, Det. Brooks and Det. Luppino among them. While being walked to the back of the van, § 87(2)(b) asked the officers around him for their names, saying that he felt he had been mistreated. No one answered. § 87(2)(b) was also brought to the blue van and placed in the back with § 87(2)(b). Both men were then driven away.

Witness: § 87(2)(b)

- § 87(2)(b) is a black male, who is § 87(2)(b). He is bald and has brown eyes. At the time of this incident, § 87(2)(b) was § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on May 28, 2013 (encl. C25-31). His statement is summarized below.

On April 23, 2013, sometime before 6:30 p.m., § 87(2)(b) parked his white Chevrolet in front of the home of his friend, § 87(2)(b) at § 87(2)(b) in Staten Island. § 87(2)(b) did not own the car; he had rented it on a week's lease so that § 87(2)(b)'s daughter, who § 87(2)(b) knows only as § 87(2)(b) could use it while she visited her father. § 87(2)(b) left the car at the location and walked down the block to the § 87(2)(b). He did not leave any drugs behind in his vehicle.

At approximately 6:30 p.m., § 87(2)(b) called § 87(2)(b) and told him to come and retrieve his car. § 87(2)(b) told § 87(2)(b) that police were on the scene, but said nothing more about why the police were there or what they were doing. § 87(2)(b) left the deli and walked towards § 87(2)(b). He was not holding marijuana or anything else in his hands, and was not smoking marijuana. As he approached § 87(2)(b) § 87(2)(b) saw § 87(2)(b) standing next to the white Chevy. She was with two male police officers in plainclothes who appeared to be questioning her; § 87(2)(b) was standing by the gate of his home. Another male civilian, who § 87(2)(b) did not know but who the investigation identified as § 87(2)(b) was also standing by the vehicle, handcuffed. Officers did not appear to be talking to him.

One of the two officers who had been speaking with § 87(2)(b) was described as a middle-aged white male, around 6'0" tall, muscular, approximately 200 pounds, and was identified by the investigation as Det. David Luppino. Det. Luppino met § 87(2)(b) as he approached and stopped him on the other side of the white Chevy. § 87(2)(b) could not describe him further, beyond saying that he had a badge hanging around his neck. His partner, identified by the investigation as Det. John Brooks, stayed with § 87(2)(b). Det. Brooks was described as a white male, about 5'8" and 100-and-something pounds, of medium build. Det. Luppino said, "You § 87(2)(b)?" § 87(2)(b) said yes, he was. Det. Luppino told § 87(2)(b) that he knew he was "not into drugs or anything," but then went on to accuse § 87(2)(b) of having given the car to "these people" (meaning § 87(2)(b) and § 87(2)(b) so that they could sell drugs and pay him later. § 87(2)(b) denied these charges. Det. Luppino then pointed to a small blunt of marijuana lying on the ground, in a patch of grass nearby, accused § 87(2)(b) of having dropped it there, and placed him in handcuffs.

Det. Luppino searched § 87(2)(b) and took his cellphone off his belt. Det. Luppino then opened the front-passenger side door of the white Chevy and placed the phone in the glove-compartment. Det. Luppino also removed about seven dollars from the car and said, § 87(2)(b) is this your money?" § 87(2)(b) said yes, and Det. Luppino placed the money in § 87(2)(b)'s pocket. Det. Luppino then locked the door of the Chevy. § 87(2)(b) never saw any other officer open the car or look inside it.

Det. Luppino told § 87(2)(b) that he would need to be taken back to the stationhouse to receive his ticket. When § 87(2)(b) asked why he was getting a summons, § 87(2)(a) 160.50

Det. Brooks placed § 87(2)(b) in an unmarked blue van, where § 87(2)(b) was placed shortly thereafter. No other officers dealt with § 87(2)(b) though other officers may have been on the scene at some point; § 87(2)(b) could not be sure about this. Det. Luppino and Det. Brooks drove § 87(2)(b) and § 87(2)(b) around for three hours § 87(2)(b) believed Det. Brooks was driving, but could not be sure). Throughout that time, § 87(2)(b) was trying to speak to the officers, asking why he had been arrested, and why it was taking so long to get him to the precinct stationhouse. He was also complaining that his handcuffs were too tight, and stomping on the floor of the van.

While issuing a Desk Appearance Ticket to § 87(2)(b) Det. Luppino told him, "He § 87(2)(b) was cursing us in the van, so he's going to sleep here." When asked if § 87(2)(b) could recall anything § 87(2)(b) said to officers at the stationhouse, § 87(2)(b) said only that § 87(2)(b) at some point, mentioned being in pain. He did not remember hearing § 87(2)(b) ask any officer for a name or a badge number. § 87(2)(b) was charged § 87(2)(a) 160.50

Attempts to Contact Civilians

§ 87(2)(b) returned the investigator's call on May 28, 2013, and provided a phone statement about the incident (encl. C32-33). § 87(2)(b) stated that he saw officers search the vehicle and place their hands down the pants of his nephew and his daughter's boyfriend, and also alleged that unidentified officers threatened to arrest him. The investigator then spoke to § 87(2)(b)'s wife, § 87(2)(b) and confirmed that she too witnessed parts of the incident. The investigator scheduled both § 87(2)(b) and § 87(2)(b) to appear for interviews at the CCRB on June 3, 2013. Neither appeared, and neither called to cancel or reschedule. Between June 5, 2013 and October 1, 2013, the investigator called the couple on their shared home phone four times, and on § 87(2)(b)'s cellphone twice, leaving messages on three occasions. The investigator also sent two please-call letters in that time, neither of which was returned by the US Postal Service. To date, neither § 87(2)(b) nor § 87(2)(b) has contacted the investigator. A search of the New York City Department of Correction Inmate Locator Service website, performed on April 22, 2014, confirmed that neither is incarcerated.

NYPD Statements:

Subject Officer: DET. ARTHUR TRUSCELLI

- *Det. Arthur Truscelli is a white male who is § 87(2)(b). He has brown hair and green eyes, and was § 87(2)(b) at the time of this incident.*
- *On April 23, 2013, Det. Truscelli worked a narcotics buy-and-bust operation from 3:27 p.m. to 12:00 a.m. with Sgt. Andrey Smirnov and Det. Nicholas Velez. He was dressed in plainclothes and assigned to an unmarked black minivan.*

Memo book

At 6:30 p.m. on April 23, 2013, Det. Truscelli noted the arrest of § 87(2)(b) in front of § 87(2)(b).

§ 87(2)(a) 160.50 (encl. D1-2). At 6:40 p.m., he noted § 87(2)(b)'s arrest in front of § 87(2)(b).
§ 87(2)(a) 160.50.

Arrest Report and Online Booking Sheets

Det. Truscelli prepared two arrest reports in regards to this incident (encl. D3-14). § 87(2)(b) was arrested § 87(2)(a) 160.50
§ 87(2)(b)
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§ 87(2)(b)

CCRB Statement

Det. Arthur Truscelli was interviewed at the CCRB on July 18, 2013 (encl. D16-18). His statement is summarized below.

At approximately 6:37 p.m. on April 23, 2013, Det. Arthur Truscelli, Det. Nicholas Velez, and Sgt. Andrey Smirnov were about a mile away from § 87(2)(b) when Sgt. Smirnov received notification of an arrest from other members of his team via point-to-point radio. As the supervisor, he was required to respond to the scene to verify the arrest, and Det. Truscelli, who was assigned as the arresting officer for

the team, accompanied him there. To the best of Det. Truscelli's knowledge, no further information about the incident was related over the radio to either Sgt. Smirnov or himself.

Det. Truscelli was familiar with the house at § 87(2)(b) and said that it has been the object of several narcotics complaints in the past. Det. Truscelli has personally responded to several incidents there, and recognized § 87(2)(b) as the name of someone who lived there.

When Det. Truscelli and his partners arrived at § 87(2)(b) he observed two handcuffed individuals, identified by the investigation as § 87(2)(b) and § 87(2)(b) and two officers from Det. Truscelli's team, Det. David Luppino and Det. John Brooks, on the scene. Det. Truscelli believed that these were the officers who had initiated the arrests. There were other civilians in the street at that point (Det. Truscelli could not estimate the number), but no other officers. Det. Truscelli did not recognize § 87(2)(b), § 87(2)(b), or § 87(2)(b) in the photographs presented to him, and could not say who among them was in handcuffs and who was not. Det. Truscelli did not remember interacting with a female at § 87(2)(b). He could not remember if he had any interaction with any of the civilians there, and did not remember taking any kind of police action toward them.

Upon arriving, Sgt. Smirnov spoke to Det. Luppino and Det. Brooks. Det. Truscelli also spoke to those detectives about the arrest and what had precipitated it, but he did not remember the substance of their conversation, or any details they related about what had precipitated the arrests. Neither of the detectives indicated that the defendants had concealed evidence or contraband.

Det. Truscelli said that in the event that defendants are suspected of having secreted contraband in their bodies, and officers suspect that it might be destroyed on the way to the stationhouse, the defendants are searched as much as possible on the scene. Search warrants for secreted objects have been obtained in the past, but Det. Truscelli said that an "intrusive" search of the body would not occur on the street. In the event that a defendant is suspected of having concealed evidence or contraband in his underwear, the defendant would be checked for it back at the stationhouse. "You're not going to expose a person on the street," he said. Det. Truscelli never conducted a strip search of either of the two defendants. Det. Truscelli did not believe a strip-search was ever conducted, and had no indication that any kind of intrusive search was conducted on the scene.

Det. Truscelli said that defendants who are about to be placed in the prisoner van are thoroughly searched beforehand. In this instance, Det. Truscelli did not observe those searches, or any other searches, take place, nor did he conduct any searches at § 87(2)(b). Det. Truscelli did not observe a search of the defendants' vehicle, and did not search the vehicle himself. There was nothing extraordinary about the vehicle, and nothing that caught Det. Truscelli's attention. He did not know if a search of the vehicle was ever conducted. Det. Truscelli did not transport § 87(2)(b) and § 87(2)(b) back to the stationhouse, and could not recall which officers did.

Det. Truscelli could not recall anything extraordinary about his dealings with § 87(2)(b) and § 87(2)(b) during their arrest processing in the 120th Precinct stationhouse. Neither § 87(2)(b) nor § 87(2)(b) ever asked Det. Truscelli for his name or shield-number, as far as he could recall. He could not remember if they asked any other officers.

Subject Officer: DET. JOHN BROOKS

- *Det. John Brooks is a white male with brown hair and brown eyes, § 87(2)(b). He was § 87(2)(b) at the time of this incident. His NYPD pedigree sheet notes that he has black hair (encl. D26).*
- *On April 23, 2013, Det. Brooks was working in a narcotics team from 3:27 p.m. to 12:00 a.m. He was assigned to the prisoner van, which he described as an unmarked blue cargo-vehicle, with Det. David Luppino. He was dressed in plainclothes.*

Memo book

At 6:30 p.m. on April 23, 2013, Det. Brooks noted § 87(2)(b)'s arrest in front of § 87(2)(b)

§ 87(2)(a) 160.50

At 6:40 p.m., he noted § 87(2)(b)'s arrest § 87(2)(a) 160.50

Criminal Court Complaint and Supporting Deposition

§ 87(2)(a) 160.50

CCRB Statement

Det. John Brooks was interviewed by the CCRB on August 6, 2013 (encl. D27-30). His statement is summarized below.

At approximately 6:30 p.m. on April 23, 2013, Det. Brooks and Det. Luppino were driving slowly past § 87(2)(b). Det. Luppino was driving the vehicle, and Det. Brooks was in the front passenger seat. Det. Brooks could not recall where the officers were going, or what they were doing beyond serving general “enforcement” purposes in that area. Det. Brooks was familiar with § 87(2)(b) as the site of several past search warrants executed by his command, § 87(2)(e). As the detectives drove past § 87(2)(b) toward Richmond Terrace, Det. Brooks looked out of his passenger-side window and observed § 87(2)(b) sitting in the rear passenger seat of a car double-parked outside of § 87(2)(b). Through the open rear driver’s-side window of that car, Det. Brooks was able to observe § 87(2)(b) breaking up a green, leafy substance in a dollar bill. Det. Brooks knew this substance to be marijuana, based on his training and hundreds of past arrests he has made involving the drug. Det. Brooks explained that the officers’ prisoner-van sat at a higher elevation than § 87(2)(b)’s vehicle, which allowed Det. Brooks to look down into the car as he passed. § 87(2)(b)’s vehicle was facing Richmond Terrace. There were only a few feet between § 87(2)(b)’s vehicle and the prisoner van. Det. Brooks believed that there was a total of four people in the vehicle, a female in the drivers’ seat, a male in the front-passenger seat, and two males in the back, including § 87(2)(b). Det. Brooks had to look over another individual in the vehicle to observe the marijuana in § 87(2)(b)’s lap. He could not say what those other individuals were doing in the vehicle.

Det. Brooks and Det. Luppino immediately stopped their van alongside the civilians’ vehicle. Det. Brooks quickly exited the van and approached § 87(2)(b) on the rear-passenger’s side. Det. Brooks could not say if § 87(2)(b) noticed him as he approached, but did observe, through the rear driver’s-side window, § 87(2)(b) bring his hand toward his pants-pocket. By the time Det. Brooks reached the vehicle, he could no longer see any marijuana in plain view; however, he had by then determined that § 87(2)(b) was going to be arrested. None of the other individuals in the vehicle made any movements as Det. Brooks and Det. Luppino approached. Det. Luppino went to speak with the driver, identified by the investigation as § 87(2)(b). Det. Brooks approached § 87(2)(b) on the passenger’s side and identified himself as a police officer, then opened the rear-passenger’s side door and asked § 87(2)(b) to step out of the vehicle. § 87(2)(b) immediately complied.

Det. Brooks could smell marijuana on § 87(2)(b)’s person. Det. Brooks did not frisk § 87(2)(b) but rather immediately searched the pants-pocket he had observed him bring his hand towards, from which Det. Brooks recovered a quantity of marijuana. Det. Brooks also recovered some evidence of a controlled

substance. He could not independently recall exactly what the substance was, but confirmed that it was most likely what was listed on § 87(2)(b)'s property voucher: a bag with cocaine residue, and a straw. Det. Brooks could not recall exactly where he found those items, but did say that he recovered them from § 87(2)(b)'s person, and possibly from the same pants-pocket in which he found the marijuana. Det. Brooks handcuffed § 87(2)(b) and performed a second, "complete and thorough" search, from "head to toe." Det. Brooks went through all § 87(2)(b)'s pockets. Det. Brooks could not specify exactly which pockets he searched beyond the front two pants pockets, but did confirm that the search was restricted to pockets only. Det. Brooks did not search under any articles of § 87(2)(b)'s clothing, whether inner or outer, never searched his underwear, and § 87(2)(b) was not asked to remove any articles of clothing. Up to that point, Det. Brooks had observed nothing to suggest that § 87(2)(b) had hidden something in his underwear.

While Det. Brooks was dealing with § 87(2)(b) Det. Luppino was speaking to § 87(2)(b) who was still seated in the vehicle. Det. Luppino learned that she had no license, and no vehicle paperwork. There was never any interaction at all between Det. Brooks and § 87(2)(b). After the second search of § 87(2)(b) had been completed, the other occupants of the vehicle, who had not been saying or doing anything in particular up to that point, were instructed to step out and move to the sidewalk. They complied, and Det. Brooks had no more dealings with them from that point on. No one spoke to the two male passengers. They were never searched. Det. Brooks did not frisk or search anyone on the scene apart from § 87(2)(b).

About ten minutes after § 87(2)(b) was placed under arrest, another civilian, § 87(2)(b) began walking down the street from Richmond Terrace, and approached the officers, the vehicle, and § 87(2)(b) who was still in handcuffs. § 87(2)(b) was smoking marijuana as he approached the officers. § 87(2)(b) approached, saying that the vehicle belonged to him. Det. Luppino was the officer who interacted with § 87(2)(b). Det. Brooks, who was standing with § 87(2)(b) heard nothing of their conversation. Det. Brooks was able to observe Det. Luppino arrest § 87(2)(b) but could not remember if Det. Luppino searched him. Det. Brooks did not believe that Det. Luppino ever frisked or searched anyone else on the scene.

Other members of Det. Brooks's field team eventually arrived at § 87(2)(b) but Det. Arthur Truscelli, the arresting officer, was the only one Det. Brooks could name. Det. Truscelli arrived after both defendants were under arrest and in handcuffs. Even after being shown the Tactical Plan for the day, Det. Brooks could not specify which other officers responded, or even how many eventually came to the scene.

The civilians' vehicle was parked and locked up. Someone did have to move the vehicle to a legal parking spot, but Det. Brooks could not recall who did that. Det. Brooks believed that the keys were vouchered with the rest of § 87(2)(b)'s property. Neither Det. Brooks nor any other officer ever conducted a search of the vehicle, reached inside of it, or entered it for any reason other than to move it. Det. Brooks did not remember any property being removed from the vehicle by officers. Det. Brooks could not recall if significant sums of money were recovered from the scene, or removed from an individual's person.

Det. Luppino and Det. Brooks drove § 87(2)(b) and § 87(2)(b) back to the stationhouse in the prisoner van. The whole team participated in processing § 87(2)(b)'s arrest, and no one officer dealt with him more than any other. Det. Brooks had no memory of § 87(2)(b) asking him for a name or shield number at the stationhouse, or making that request of any other officer. Nothing about § 87(2)(b)'s demeanor struck Det. Brooks as unusual, and he had no memory of § 87(2)(b) trying to get officers' attention. To the best of Det. Brooks's knowledge, no strip-search was ever conducted of either § 87(2)(b) or § 87(2)(b). Under no circumstances are strip-searches conducted at the scene of an arrest, even if it is suspected that a defendant might destroy or somehow discard evidence or contraband on the way to the stationhouse.

Subject Officer: DET. DAVID LUPPINO

- *Det. David Luppino is a white male who is § 87(2)(b). He has brown hair, brown eyes, and was § 87(2)(b) at the time of this incident. He acknowledged that he wears glasses and was wearing them at the time of this incident.*
- *On April 23, 2013, Det. Luppino worked from 3:27 p.m. to 12:00 a.m., assigned to the prisoner van with Det. John Brooks. He was dressed in plainclothes and working in an unmarked van, a blue Ford.*

Memo book

At 6:30 p.m. on April 23, 2013, Det. Luppino noted the arrest of § 87(2)(b) in front of § 87(2)(b)

§ 87(2)(a) 160.50

Criminal Court Complaint and Supporting Deposition

§ 87(2)(a) 160.50

CCRB Statement

Det. David Luppino was interviewed by the CCRB on August 7, 2013 (encl. D38-40). His statement is summarized below.

At approximately 6:30 p.m. on April 23, 2013, Det. David Luppino was driving in the 120th Precinct with his partner, Det. David Brooks, in the front passenger seat. As they drove down § 87(2)(b) toward Richmond Terrace, the officers observed a car double-parked in front of § 87(2)(b). Det. Luppino was familiar with that house as the site of numerous search warrants over the years, and the location of more than 100 arrests, mostly for drugs. Det. Luppino recognized the name § 87(2)(b) knew that he lived at § 87(2)(b) and said that his team had arrested § 87(2)(b) several times in the past. The vehicle parked in front of § 87(2)(b) was running, facing Richmond Terrace, and contained three occupants. The officers drove by slowly, passing within a few feet on the sedan's left side. As they did, Det. Brooks observed a male in the back passenger's seat of the parked vehicle, identified by the investigation as § 87(2)(b) dumping marijuana into a dollar bill. Det. Luppino did not observe this; he could not see much of anything of what was happening in the sedan. Det. Brooks told Det. Luppino to stop and Det. Luppino immediately did so, pulling up next to the sedan. Det. Brooks got out, went around the parked car and approached the rear-passenger's side door. Det. Luppino approached the driver's door: a female, identified by the investigation as § 87(2)(b) was in the driver's seat, and a male, identified by the investigation as § 87(2)(b) was seated next to her. Det. Luppino had never seen any of the car's occupants before. Det. Luppino did not observe § 87(2)(b) make any movements as the officers approached, and did not observe the marijuana.

Det. Brooks immediately asked § 87(2)(b) to step out of the vehicle. He then recovered the marijuana from § 87(2)(b)'s person, handcuffed him, and searched him again for other drugs. Det. Luppino did not know where Det. Brooks recovered the marijuana from, and could not speak with any great specificity about what Det. Brooks did with § 87(2)(b). He could not speak to the manner in which Det. Brooks searched § 87(2)(b) but was sure he did not observe Det. Brooks go into § 87(2)(b)'s underwear. Det. Luppino never heard § 87(2)(b) inform Det. Brooks that he had marijuana. Det. Luppino believed that some other kind of controlled substance was recovered from § 87(2)(b)'s person, but he did not know what, where, or how. When told that a bag with cocaine residue and a straw were vouchered in § 87(2)(b)'s name, Det. Luppino stated that he did not observe those items be recovered on the scene. Det. Luppino did not know if any significant sums of money were ever recovered from § 87(2)(b)'s person.

Det. Luppino spoke to § 87(2)(b) and asked her for identification. She could not provide any, nor could she produce any paperwork for the vehicle. Det. Luppino asked § 87(2)(b) whose car she was driving. She replied that it belonged to a friend of hers named, § 87(2)(b) and did not know his real

name. None of the occupants knew the real name of the person who owned the car. Det. Luppino never asked § 87(2)(b) to call the owner, or get in touch with him in some way. Det. Luppino did not remember making any specific observations about conditions inside the car while speaking to § 87(2)(b) and did not remember observing any sums of money there. Det. Luppino then called his field team over the radio and requested assistance. § 87(2)(b) and § 87(2)(b) were asked to step out of the vehicle and stand on the sidewalk in front of § 87(2)(b). They complied with that directive, and Det. Luppino had no further interaction or conversation with them beyond that point. Det. Luppino did not know if he ever spoke to § 87(2)(b) and never searched him. He never strip-searched § 87(2)(b) and never saw another officer do so. To the best of Det. Luppino's knowledge, neither § 87(2)(b) nor § 87(2)(b) was ever strip-searched.

Sgt. Smirnov, Det. Truscelli, and Det. Velez responded to the scene as back-up. Other Narcotics officers were also on the scene. Det. Luppino could not remember who they were specifically, but thought that Det. Fago, from another team, responded with two other people a few minutes after Sgt. Smirnov arrived. He did not think either Det. Friedman or Det. Delprete was there. As the other officers were arriving on the scene, another man, § 87(2)(b) walked up § 87(2)(b) from the corner of Richmond Terrace. § 87(2)(b) was smoking marijuana, the distinct odor of which Det. Luppino could smell from the corner. As soon as § 87(2)(b) realized that he was heading toward the police, he either put the marijuana cigarette in his pocket or threw it on the ground. § 87(2)(b) then walked up to the police officers, where Det. Luppino and perhaps another officer, possibly Det. Velez or Det. Truscelli, met him. § 87(2)(b) looked confused, and wanted to know what was going on. Det. Luppino recovered a marijuana cigar from § 87(2)(b) and placed him under arrest; Det. Luppino could not remember where the marijuana cigar was recovered from. As he was being arrested, § 87(2)(b) informed the officers that the sedan was rented in his name.

When asked if the civilians' vehicle was searched, Det. Luppino initially stated, "Det. Brooks searched the area where he recovered marijuana." When asked to elaborate, Det. Luppino said that Det. Brooks "might have conducted a small search" of the area where § 87(2)(b) had been sitting. Det. Luppino said that he did not see this search, as he was still concentrating on § 87(2)(b) at the time. No one else searched the car, as far as he could remember. Det. Luppino explained that when a defendant is sitting in a vehicle with drugs in open view, officers have the right to search the open, "lungeable" areas inside the vehicle; "that's just normal procedure." Det. Luppino said Det. Brooks might have done this, but could not be sure. He did not know if Det. Brooks reached inside the car at any point. Det. Luppino then stated that the car was not searched. Det. Luppino clarified that he searched § 87(2)(b) that Det. Brooks searched § 87(2)(b) and that he did not believe anyone else was searched on the scene. No one conducted secondary searches of either of the defendants. Det. Luppino never observed any officer search under any articles of clothing on the scene.

The car was locked and the keys vouchered. § 87(2)(b) and § 87(2)(b) were placed in the prisoner van, which Det. Luppino and Det. Brooks continued to drive in the service of their enforcement duties. At 10:00 p.m., the officers returned to the 120th Precinct stationhouse. § 87(2)(b)'s demeanor was calm and un-extraordinary. Det. Luppino stated that prisoners in the back of the van can't really be heard in the front cab, and he had no memory of § 87(2)(b) trying to get his attention.

§ 87(2)(b) was brought to the stationhouse and processed by Det. Luppino's whole team – everyone pitched in. Det. Luppino was present for the processing, and prepared the supporting deposition for § 87(2)(b)'s arrest. He did not remember § 87(2)(b) trying to speak to officers at that time. Det. Luppino did not remember § 87(2)(b) ever asking him for his name or shield number. He did not know if § 87(2)(b) made that request of anyone else.

Subject Officers: SGT. ANDREY SMIRNOV and DET. NICHOLAS VELEZ

- *Lt. Andrey Smirnov is a white male who is § 87(2)(b) and § 87(2)(b). He has brown hair and blue eyes. His NYPD pedigree sheet lists him as completely bald (encl. D44). At the time of this incident,*

Lt. Andrey Smirnov was a § 87(2)(b) sergeant at Staten Island Narcotics. He will be referred to as Sergeant throughout this report.

- Det. Nicholas Velez is a Hispanic male who is § 87(2)(b). He has black hair and brown eyes, and was § 87(2)(b) at the time of this incident.
- On April 23, 2013, both Sgt. Smirnov and Det. Velez worked narcotics enforcement functions within the 120th Precinct from 3:25 p.m. to 12:00 a.m. Sgt. Smirnov was the field supervisor of his team's buy-and-bust operations that day. Both officers were dressed in plainclothes and assigned to car § 87(2)(e), an unmarked black minivan, with Det. Truscelli.

Memo Books

At 6:30 p.m. on April 23, 2013, Sgt. Smirnov noted that one individual was placed under arrest for § 87(2)(a), by Det. Luppino (encl. D41-43). At 6:40 p.m., another individual was placed under arrest for § 87(2)(a) by Det. Brooks, in front of § 87(2)(b). The defendants' names were § 87(2)(b) and § 87(2)(b). It is noted that both men were stopped by Det. Luppino and Det. Brooks.

At 6:30 p.m. on April 23, 2013, Det. Velez noted one individual under arrest in front of § 87(2)(b). At 6:40 p.m., he noted one other individual under arrest in front of § 87(2)(a) 160.50. § 87(2)(a) 160.50.

CCRB Statements

Sgt. Smirnov was interviewed by the CCRB on November 7, 2013 (encl. D45-47), and Det. Velez on March 4, 2014 (encl. D51-52). § 87(2)(g)

Sgt. Smirnov stated that he, Det. Truscelli, and Det. Velez arrived at § 87(2)(b) about five minutes after Det. Luppino or Det. Brooks (he wasn't sure which) advised him via phone that two arrests had been made there, and that those arrests needed to be verified. Both Sgt. Smirnov and Det. Velez were familiar with § 87(2)(b) as a crack-house. Sgt. Smirnov and Det. Velez both confirmed that by the time they arrived on the scene, § 87(2)(b) and § 87(2)(b) were already in handcuffs. Sgt. Smirnov observed them standing near a vehicle that was legally parked in front of § 87(2)(b). It did not have to be moved or vouchered. Neither Sgt. Smirnov nor Det. Velez searched the vehicle; Sgt. Smirnov said he never saw any other officer do so, while Det. Velez could not recall if anyone ever did. Sgt. Smirnov believed that a few minutes after he and his partners arrived on the scene, Sgt. Buckley and Det. Fago, officers from another team, drove by the scene. Sgt. Buckley's narcotics team had an open investigation on the location, and the two officers stopped by to observe what was happening, but had no involvement in the incident whatsoever. Sgt. Smirnov wasn't sure if the other two officers on his team, Det. Delprete and Det. Friedman, responded to the location, but thought it was likely that they did.

Sgt. Smirnov spoke to both Det. Luppino and Det. Brooks. They told Sgt. Smirnov that they had recovered drugs from § 87(2)(b) and § 87(2)(b) and that the two would be arrested, but told him nothing about how they had recovered the drugs or what other police actions they had taken on the scene. Neither Sgt. Smirnov nor Det. Velez interacted with any civilians involved in the arrest while on the scene, though Det. Velez acknowledged he might have helped to load the prisoners into a the van. Det. Velez later acknowledged that he had next to no specific memory of this incident. Neither he nor Sgt. Smirnov searched anyone at § 87(2)(b) nor did they witness any searches. Neither Det. Luppino nor Det. Brooks explicitly told Sgt. Smirnov that they had conducted searches of § 87(2)(b) or § 87(2)(b).

Strip-searches are never conducted at the scene of an arrest. Sgt. Smirnov had no knowledge of any officer having looked under any of either defendants' items of clothing. No strip-searches were conducted at any point during this incident. Sgt. Smirnov would have been the one to authorize any strip-searches that did occur. Neither Sgt. Smirnov nor Det. Velez conducted any strip-searches themselves.

Later that evening, the team returned to the 120th Precinct stationhouse with its two prisoners. § 87(2)(b) and § 87(2)(b) were then placed in the cells by the whole field team; no one officer had particular responsibility for either prisoner at that point. § 87(2)(b) and § 87(2)(b) remained together the whole time they were in the stationhouse. Both men seemed annoyed, judging by their tone, but nothing about either § 87(2)(b)'s or § 87(2)(b)'s demeanor struck Sgt. Smirnov as extraordinary. Neither was asking the officers any questions. Sgt. Smirnov never heard § 87(2)(b) ask him or any other officer for their name or shield number.

Subject Officer: DET. ANDREW FAGO

- *Det. Andrew Fago is a white male who is § 87(2)(b), with brown hair and brown eyes. He was § 87(2)(b) at the time of this incident. Det. Fago's NYPD pedigree sheet lists him as completely bald (encl. D56).*
- *On April 23, 2013, Det Fago worked from 1:27p.m. by 10:00 p.m., doing investigative work, making case-buys and serving search warrants on a long-term case. Det. Fago could not recall who he was working with. He was dressed in plainclothes and assigned to an unmarked vehicle that he could not identify or describe.*

Memo Book

At 6:25 p.m. on April 23, 2013, Det. Fago noted the details of a case-buy he conducted in the vicinity of § 87(2)(b) (encl. D53-55). He had no memo book entries regarding § 87(2)(b)

CCRB Statement

Det. Andrew Fago was interviewed at the CCRB on February 5, 2014 (encl. D57-58). His statement is summarized below.

On April 23, 2013, at approximately 6:30 p.m., Det. Andrew Fago was conducting a case-buy at § 87(2)(b) when he learned via tactical radio that another team was making an arrest at § 87(2)(b) a location where Det. Fago had long been building a case. Det. Fago drove by the location to observe the situation, but took no police action with respect to civilians there. Det. Fago thought that he probably exited his vehicle at § 87(2)(b) to ask a member of the apprehending field team (Det. Fago did not know who) to identify one of the arrested individuals, § 87(2)(b) who he observed there in handcuffs. Det. Fago knew who § 87(2)(b) was, but had not until then known his legal name. Det. Fago did not remember what more was discussed with that officer he spoke to. Det. Fago spent less than two minutes at § 87(2)(b)

§ 87(2)(b) has been the source of numerous 911 calls and complaints. Half of the building has been nuisance-abated, meaning that the house itself has been indicted, and three search warrants into the location have yielded positive results. Det. Fago recognized the name § 87(2)(b) as someone who had been arrested by his command in the past, and said that she lived there. Det. Fago met § 87(2)(b) when, approximately three years before this incident, a search warrant was executed at his home (not § 87(2)(b) and a firearm recovered. Det. Fago reviewed the CCRB allegation sheet and said he was familiar with § 87(2)(b), § 87(2)(b), and § 87(2)(b); these were all people he had dealt with in the past, and all of them knew Det. Fago. He did not know if § 87(2)(b) who he also knew, was on the scene at the time of this incident.

In the time that Det. Fago spent on the scene, the officers already there did not appear to be taking any police action, and in fact, seemed preparing to leave. Det. Fago did not observe a white sedan on the location. He did not see any officers searching a vehicle at this location, nor did he search a vehicle himself. He did not observe any searches of persons on the scene. He never heard a civilian ask an officer for his name or shield number.

Det. Fago viewed the Tactical Plan on which he appears, but still could not recall who accompanied him to § 87(2)(b)

Witness Officers: DET. GERARD DELPRETE and DET. MICHAEL FRIEDMAN

- *Det. Gerard Delprete is a white male who is § 87(2)(b). He has brown hair and brown eyes and was § 87(2)(b) at the time of this incident.*
- *Det. Michael Friedman is a white male who is § 87(2)(b). He has brown hair and brown eyes, and was § 87(2)(b) at the time of this incident.*
- *On April 23, 2013, Det. Delprete and Det. Friedman served narcotics enforcement functions with Det. Friedman from 2:27 p.m. to 11:00 p.m. Both were dressed in plainclothes and assigned to unmarked vehicle § 87(2)(e), a silver Mitsubishi.*

Memo Books

On April 23, 2013, Det. Delprete noted the arrest of § 87(2)(b) at 6:30 p.m. (encl. D59-61). At 6:40 p.m. he noted the arrest of § 87(2)(b). At 10:00 p.m., Det. Delprete noted his return to the 120th Precinct stationhouse. Det. Friedman did not have any memo book entries regarding this incident, though both he and Det. Delprete had notations regarding a case-buy they conducted at § 87(2)(b) at 6:30 p.m. (encl. D65-66).

CCRB Statements

Det. Gerard Delprete was interviewed at the CCRB on March 4, 2014 (encl. D63-64), and Det. Michael Friedman on April 9, 2014 (encl. D68-69). § 87(2)(g)

Neither Det. Gerard Delprete nor Det. Michael Friedman responded to § 87(2)(b) at any point on April 23, 2013, and neither witnessed any part of the arrests their field team made there. Det. Delprete explained that he noted the arrests of § 87(2)(b) and § 87(2)(b) in his memo book because he usually writes down any action his team takes, regardless of whether or not he was directly involved. He did not learn of the team's arrests until the end of the night, when Det. Delprete usually fills out his memo book.

Det. Delprete viewed the CCRB's photo of § 87(2)(b) and said that he recognized him as someone who frequently hangs around the vicinity of § 87(2)(b). He is known to the command for past drug offenses. Det. Friedman had no knowledge of § 87(2)(b) but recognized § 87(2)(b)'s name in connection with past narcotics complaints.

At approximately 10:00 p.m., Det. Delprete and Det. Friedman met with Det. Truscelli at the 120th Precinct stationhouse. Det. Delprete assumed that § 87(2)(b) and § 87(2)(b) were in the course of being lodged in the cells at the time; he did not think he was on-hand to witness § 87(2)(b) being presented before the Desk Officer. Det. Friedman had no recollection of § 87(2)(b) at all. Neither Det. Delprete nor Det. Friedman acknowledged interacting with either of the arrested individuals in any way. Both officers thought they might have assisted in processing the paperwork for those arrests, but neither could say how. Neither officer heard § 87(2)(b) ask any officer for his name or shield number.

Witness Officer: SGT. SALMAN ASGHAR

- *Sgt. Salman Asghar is an Asian male who is § 87(2)(b). He has black hair and brown eyes and was § 87(2)(b) at the time of this incident.*
- *On April 23, 2013, Sgt. Asghar was the desk officer at the 120th Precinct stationhouse from 2:50 p.m. to 11:47 p.m. He was dressed in uniform, had no partner, and was not assigned to a motor vehicle.*

Memo Book

Sgt. Asghar had no memo book entries in regards to this incident (encl. D70-71).

CCRB Statement

Sgt. Salman Asghar was interviewed at the CCRB on February 26, 2014. His statement is

summarized below (encl. D72-73).

Sgt. Salman Asghar had no memory of this incident. He was shown the CCRB photograph and the arrest photograph of § 87(2)(b) and did not recognize him in either photograph. The investigator explained that § 87(2)(b) was brought into the stationhouse by Det. Luppino and Det. Brooks. Sgt. Asghar did not know who those detectives were, and had no memory of narcotics officers bringing prisoners into the command on April 23, 2013. Sgt. Asghar explained that perpetrators arrested in the 120th Precinct stationhouse will be brought upstairs first, processed, and then brought downstairs to be lodged in the cells. Sgt. Asghar had no memory of Det. Truscelli bringing prisoners into the stationhouse on April 23, 2013. Sgt. Asghar was told that § 87(2)(b) alleged that, while in front of the desk at the 120th Precinct stationhouse, he asked an officer for his name and shield number and was not provided it. Sgt. Asghar had no memory of such a thing happening.

The cells at the 120th Precinct stationhouse are in another room, through a set of double doors. The cells are not visible from Sgt. Asghar's desk. There are also cells in Central Booking upstairs. Officers assigned to Central Booking upstairs, as members of the Criminal Justice Bureau, would not appear on the 120th Precinct roll call.

NYPD Documents

Property Vouchers

As per property vouchers dated April 23, 2013, § 87(2)(b) was vouchered with marijuana packaged in a one dollar bill, one clear straw with cocaine residue, and one zip-lock bag with cocaine residue (encl. E1-4).

Tactical Plan

§ 87(2)(e)

Stop, Question, and Frisk Report

As per NARCBSI Integrity Control Officer, no UF250 was prepared in relation to this incident (encl. H2). No UF250 regarding § 87(2)(b), § 87(2)(b), § 87(2)(b) or § 87(2)(b) appears on the 120th Precinct UF250 Index (encl. E24-29).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- As of April 30, 2014, neither § 87(2)(b) nor § 87(2)(b), nor § 87(2)(b) has filed a Notice of Claim with the Office of the New York City Comptroller in regards to this incident (encl. FI).

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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Civilians CCRB History

- This is the first CCRB complaint filed by either [§ 87(2)(b)], [§ 87(2)(b)], or [§ 87(2)(b)] [§ 87(2)(b)] (encl. A11-13).

Subject Officers CCRB History

- Det. John Brooks has been a member of the service for 18 years, and there are no substantiated CCRB allegations against him (encl. A1-2).
- Det. David Luppino has been a member of the service for 20 years (encl. A3-5). Two allegations of Force were substantiated against him in CCRB case 9503469, for which he received a Command Discipline.
- Det. Arthur Truscelli has been a member of the service for 11 years, and there are no substantiated CCRB allegations against him (encl. A6).
- Sgt. Andrey Smirnov has been a member of the service for 11 years, and there are no substantiated CCRB allegations against him (encl. A7).
- Det. Nicholas Velez has been a member of the service for 10 years and there are no substantiated CCRB allegations against him (encl. A8).
- Det. Andrew Fago has been a member of the service for 12 years (A9-10). One allegation of Abuse – Stop was substantiated against him in CCRB case 201302827, for which he received Instructions.

Conclusion

Allegations Not Pled

[§ 87(2)(g)]
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Det. John Brooks and Det. David Luppino acknowledged approaching § 87(2)(b), § 87(2)(b), and § 87(2)(b) as they sat in their parked vehicle outside of § 87(2)(b), § 87(2)(g).
 § 87(2)(b)
 § 87(2)(b)
 § 87(2)(b)
 § 87(2)(b)
 § 87(2)(b)
 § 87(2)(b)

[illegible]

[REDACTED]

§ 87(2)(g)

§ 87(2)(b) alleged that his vehicle was searched by Det. Luppino, Det. Brooks, and approximately six other officers he could not identify or describe. He said that a Hispanic officer § 87(2)(g) was the only officer who did not search the vehicle.

§ 87(2)(b) stated that four officers searched the vehicle, and that Det. Luppino, Det. Brooks, and the unidentified officer who strip-searched him (either Sgt. Smirnov or Det. Truscelli) were not among them. He could not describe the officers who searched the vehicle. § 87(2)(b) stated that Det. Brooks and Det. Luppino searched the car once before the other officers arrived. Seven more officers then responded, only two of which she could describe: one was a skinny Puerto Rican officer who arrived in the black Dodge minivan. He had a goatee and short, curly black hair, was 5'10" tall, weighed 180 or 190 pounds, and appeared to be in his late thirties. § 87(2)(g)

§ 87(2)(b) also described a non-black bald officer, 5'7" tall and 300 pounds.

§ 87(2)(g)

Though he listed his hair as brown, his NYPD pedigree photograph showed him to be bald. § 87(2)(b) stated that Det. Velez and Det. Fago then searched the vehicle, along with several other officers she could not describe. § 87(2)(g)

§ 87(2)(b) alleged that, as the encounter was ending, she asked the officer who first approached her for his name. § 87(2)(b) described that officer as 6'6" tall, with black hair, as opposed to the shorter officer, who she said was 5'6" tall with black-and-gray hair. § 87(2)(g)

§ 87(2)(b) alleged that he asked both of the officers who initially stopped him for their names at the 120th Precinct stationhouse. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Det. John Brooks stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b) **in front of** § 87(2)(b)

Allegation B – Abuse of Authority: Det. David Luppino stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b) **in front of** § 87(2)(b)

Allegation C – Abuse of Authority: Det. John Brooks searched § 87(2)(b) **in front of** § 87(2)(b)

Allegation D – Abuse of Authority: Det. John Brooks frisked § 87(2)(b) **in front of** § 87(2)(b)

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) all alleged that on April 23, 2013, they

were stopped by Det. John Brooks and Det. David Luppino as they were sitting in their parked vehicle, outside of § 87(2)(b) in Staten Island. § 87(2)(b) went on to allege that Det. Brooks removed a small amount of marijuana from his pocket, and then frisked him. § 87(2)(b) was ultimately arrested for

§ 87(2)(a) 160.50

§ 87(2)(b) acknowledged having a small amount of marijuana in his pocket at the time of the stop, but

said there were no other drugs in the vehicle and that no one used drugs while inside it. § 87(2)(b) had smoked some marijuana earlier that day. Det. Brooks stated that, as Det. Luppino slowly drove him past the civilians' vehicle, he was able to observe § 87(2)(b) sitting in the back passenger's seat, breaking up a quantity of marijuana in a dollar bill. Det. Luppino stated that he could not observe conditions inside § 87(2)(b)'s vehicle, and never saw the marijuana in question. Nevertheless, Det. Brooks stated that § 87(2)(b) was effectively under arrest for holding marijuana in public view from that point on. Upon stopping § 87(2)(b) in service of that arrest, he immediately removed the observed marijuana from the pocket where he believed he had seen § 87(2)(b) place it as he approached. Det. Brooks's supporting deposition specified that the marijuana was removed from § 87(2)(b)'s front right pants pocket. § 87(2)(b) confirmed that Det. Brooks removed the marijuana from his front right pants pocket before any other frisks or searches were conducted, but said that the detective knew to look for the marijuana there because § 87(2)(b) informed him of its presence. Both § 87(2)(b) and § 87(2)(b) confirmed that § 87(2)(b) told the officer who searched him that he was carrying marijuana. According to Det. Brooks, his subsequent search of § 87(2)(b)'s pockets was incident to arrest.

Because Det. Brooks's stop of § 87(2)(b) automatically initiated a stop of the two other passengers in § 87(2)(b)'s parked car, the question of the officers' probable cause to arrest § 87(2)(b) is more than an arrest dispute. However, there is little evidence beyond Det. Brooks's reported observation that can be brought to bear upon the allegation. That § 87(2)(b) was carrying a quantity of marijuana packaged in a dollar bill on his person is not in dispute. The only question is whether he was at some point holding that marijuana in his hand, and if Det. Brooks would have been in a position to see it. Though § 87(2)(b) did state that no one was smoking or using drugs inside the vehicle, and heavily implied that the marijuana remained in his pocket until Det. Brooks brought it out into the open, he never explicitly denied that he had been holding marijuana as the officers' drove by. If he was indeed holding marijuana in public view, the officers would have had not only probable cause to arrest him, but also reasonable suspicion to detain the individuals with whom he was sharing a vehicle. § 87(2)(b) and § 87(2)(b) also stated that no one was smoking any marijuana in the vehicle, but neither took the opportunity to deny that there were any drugs in the car. No further witnesses could speak to this allegation. § 87(2)(g)

Allegations A through D. It is therefore recommended that they be closed as **unsubstantiated**.

Allegation E – Abuse of Authority: An officer strip-searched § 87(2)(b) in front of § 87(2)(b)

Allegation F – Abuse of Authority: Det. David Luppino strip-searched § 87(2)(b) in front of § 87(2)(b)

§ 87(2)(b) stated that after Det. Brooks frisked and searched him in front of § 87(2)(b) another officer arrived on the scene in a black minivan and placed his hand down the back of his underwear. § 87(2)(b) alleged that Det. Luppino placed his hand underneath his underwear, and that of § 87(2)(b) before any officers other than the initial two had appeared on the scene. No officer acknowledged going under any items of civilians' clothing, having conducted any strip-searches, or having witnessed any strip-

searches take place. Sgt. Smirnov, a possible subject of these allegations, denied that he ever interacted with any civilians on the scene, and stated that he never conducted any searches or strip-searches at § 87(2)(b). Det. Truscelli, another possible subject of those allegations, did not remember taking any police action with respect to any civilian on the scene, and explicitly denied conducting any searches or strip-searches.

§ 87(2)(g)

§ 87(2)(b) stated that some ten minutes after Det. Brooks first removed the marijuana from his pocket, another officer, PO1, arrived on the scene with two other officers in a black minivan. While the other officers were searching the civilians' vehicle, PO1, § 87(2)(b) approached Det. Brooks and asked him if he had searched § 87(2)(b). When Det. Brooks said yes, PO1 said he was going to search him again. PO1 then patted the outside of § 87(2)(b)'s clothing, slid his hand beneath his underwear, and withdrew it. § 87(2)(b) said that PO1 then went directly to § 87(2)(b) frisked him, and slid his hand beneath his underwear as well. § 87(2)(b) said that he, § 87(2)(b) and § 87(2)(b) were all standing together at the back of their vehicle when this occurred.

§ 87(2)(b) described an altogether different set of circumstances. He alleged that when he, § 87(2)(b) and § 87(2)(b) were first stopped, Det. Luppino went to § 87(2)(b) and more or less immediately conducted the strip-search after removing the marijuana from § 87(2)(b)'s pocket. This occurred while both § 87(2)(b) and § 87(2)(b) were standing on the passenger's side of the vehicle. Det. Luppino then called for back-up, handcuffed § 87(2)(b) and positioned him by a fence a few feet away. Det. Luppino then approached § 87(2)(b) and searched him. As other officers were arriving in their vehicles, Det. Luppino placed his hand inside § 87(2)(b)'s underwear and swiped upwards between his buttocks with two fingers. This occurred at the rear of the vehicle, where § 87(2)(b) was also standing.

§ 87(2)(b) stated that she saw the officers strip-search both § 87(2)(b) and § 87(2)(b). While the responding officers were searching the civilians' vehicle, two different officers conducted strip-searches of § 87(2)(b) and § 87(2)(b) at the back of the vehicle, where they were standing next to § 87(2)(b). One officer, § 87(2)(g), placed his hand in § 87(2)(b)'s underwear, while another, § 87(2)(g), placed his hand inside § 87(2)(b)'s underwear.

§ 87(2)(g)

The officers interviewed in this matter repeatedly insisted that strip-searches are never conducted in the field. § 87(2)(g)

it is recommended that Allegation E and F be closed as **unfounded**.

Allegation G – Abuse of Authority: Det. John Brooks searched the vehicle in which § 87(2)(b) § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants in front of § 87(2)(b)
Allegation H – Abuse of Authority: Det. David Luppino searched the vehicle in which § 87(2)(b) § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants in front of § 87(2)(b)
Allegation I – Abuse of Authority: Det. Arthur Truscelli searched the vehicle in which § 87(2)(b) § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants in front of § 87(2)(b)
Allegation J – Abuse of Authority: Sgt. Andrey Smirnov searched the vehicle in which § 87(2)(b) § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants in front of § 87(2)(b)
Allegation K – Abuse of Authority: Det. Nicholas Velez searched the vehicle in which § 87(2)(b) § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants in front of § 87(2)(b)
Allegation L – Abuse of Authority: Det. Andrew Fago searched the vehicle in which § 87(2)(b) § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants in front of § 87(2)(b)

§ 87(2)(b) alleged that on April 23, 2013, the vehicle he had been sitting in was searched by a total of eight officers. He stated that Det. Luppino searched the front passenger's seat, the glove compartment, and the trunk of the car. Det. Brooks searched the driver's side. As this was happening, two unmarked vehicles arrived on the scene, and six more officers searched § 87(2)(b)'s vehicle as well. § 87(2)(b) could not describe those officers at all, but said that there was only one on the scene who did not participate in the search of the car; that officer was the only Hispanic male present, § 87(2)(g)

§ 87(2)(b) alleged that only four officers searched the vehicle, and that Det. Luppino and Det. Brooks were not among them. PO1, either Sgt. Smirnov or Det. Truscelli, did not search the vehicle either. Though § 87(2)(b) could not describe them at all, he said that the officers searched the trunk, the glove-compartment, and under all the seats. Those officers arrived in a black minivan and a Gray Nissan Maxima.

§ 87(2)(b) alleged that Det. Brooks and Det. Luppino searched the entire vehicle and opened all its compartments, but did not open the trunk. After three unmarked vehicles arrived on the scene, including a black Dodge minivan, all the officers in the first two responding vehicles searched the civilians' car for a second time. Those officers included Det. Velez, who searched the driver's side of the Impala, and Det. Fago, who searched the trunk.

When § 87(2)(b) arrived on the scene, officers were not doing anything with respect to the vehicle he had rented for the complainants. He did not witness a search of that vehicle, though § 87(2)(b) and § 87(2)(b) both stated that the search was still going on as § 87(2)(b) came on the scene. § 87(2)(b) did say, however, that one of the officers, a 6'0" tall, 200 pound white male who the investigation identified as Det. Luppino, did take § 87(2)(b)'s cellphone off of his belt as he was arresting him and placed it in the vehicle's glove compartment. Det. Luppino also removed seven dollars from the vehicle and placed it in § 87(2)(b)'s pocket.

With one exception, all the officers interviewed explicitly denied that any search of the civilians' vehicle occurred. The only officer who dissented on this point was Det. Luppino, who initially stated that Det. Brooks searched the area from which he recovered marijuana, then clarified that Det. Brooks "might have conducted a small search" of the area where § 87(2)(b) had been sitting. However, Det. Luppino did not see that search take place. Det. Luppino explained that it was normal procedure to search the "lungeable areas" of a vehicle in which an individual is sitting with drugs in open view, and that Det. Brooks might have done this. Ultimately, though, he could not be sure if Det. Brooks did this. Det. Luppino concluded by stating that the car was not searched at all. He himself did not search the vehicle. Likewise, Det. Brooks denied searching the vehicle, and stated that neither he nor any other officer ever entered or reached inside it; he did acknowledge though that someone would have had to enter the car to move it to a legal parking space. He did not know which officer performed that task. Det. Brooks did not recall any property ever having been removed from the vehicle.

The civilians presented a context in which the extensive vehicle-search they alleged might have occurred. They acknowledged that § 87(2)(b) a resident of § 87(2)(b) is a crack-user who has frequent contact with police. They also acknowledged having a large amount of cash with them in the vehicle as they waited outside what was, by all accounts, a known drug location. The civilians implied that once the officers had observed this money, they became convinced that they had discovered a major drug deal in progress. With each successive officer-interview, that theory became more and more plausible: all of the officers stated that they had prior knowledge of § 87(2)(b) as the chronic source of narcotics complaints, and most stated that they knew who § 87(2)(b) was. Det. Fago went on to say that he was conducting a long-term investigation into the location and had an interest not only in § 87(2)(b) but in § 87(2)(b) and § 87(2)(b) as well. § 87(2)(g)

it is recommended that Allegations G through L be closed as **unsubstantiated**.

Allegation M – Det. John Brooks refused to provide his name to § 87(2)(b) in front of § 87(2)(b) and to § 87(2)(b) at the 120th Precinct stationhouse.

Allegations N – Det. David Luppino refused to provide his name to § 87(2)(b) at the 120th Precinct stationhouse.

§ 87(2)(b) alleged that, while standing next to § 87(2)(b) and § 87(2)(b) at the rear of their vehicle, she asked Det. John Brooks for his name. Det. Brooks ignored her; § 87(2)(b) could not recall if he gave any indication of having heard her request. Neither § 87(2)(b) nor § 87(2)(b) nor § 87(2)(b) reported that § 87(2)(b) ever asked an officer for his name. Det. Brooks stated that he never had any conversation or interaction with § 87(2)(b) and that none of the civilians spoke to the officers after they were removed from their vehicle.

§ 87(2)(b) made her request as the incident was ending, and directed it towards the 6’6” tall officer with black hair, as opposed to his partner, who stood a foot shorter and had black-and-gray hair. It was this much taller officer with black hair who had first approached her as she sat in her vehicle. § 87(2)(b) and § 87(2)(b) described Det. Luppino, the shorter officer with glasses, as the officer with black-and-gray hair, and Det. Brooks, the taller one, as having black hair. § 87(2)(g)

§ 87(2)(b) alleged that he asked both Det. Brooks and Det. Luppino for their names after spending about an hour and a half in the 120th Precinct stationhouse. He directed that request from the holding cells, as Det. Brooks and Det. Luppino were standing at the desk with other officers, and while § 87(2)(b) was with him. § 87(2)(b) stated that he did not remember hearing § 87(2)(b) ask any officer for his name or shield number, though he did remember § 87(2)(b) complaining of pain while in the holding cell. Neither

Det. Brooks nor Det. Luppino remembered § 87(2)(b) ever requesting a name or shield number. None of the other seven interviewed officers remembered such a request either.

Sgt. Salman Asghar, who was assigned as the 120th Precinct Desk Officer on April 23, 2013, stated that the holding cells at the 120th Precinct stationhouse are not visible from his desk. They are in another room, through a set of double doors. § 87(2)(g)

Allegations M and N, and therefore recommends that they be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date